

Cal.App.4th 1321, 1329 [2 Cal. Rptr. 3d 505] [“case law makes clear that licenses create *no* interest in real property”].)

Richardson v. Franc (2015) 233 Cal. App. 4th 744, 758-759.

In a quiet title action, “an action may be brought under this chapter to establish title against adverse claims to real or personal property or any interest therein.” CCP § 760.020(a).

The Sturemans have not provided case law holding that title to an irrevocable license cannot be quieted. As pointed out by the Misers in their opposition to the demurrer, the irrevocable license at issue in the cross-complaint is the functional equivalent to an easement. Because of the equivalencies, the Misers should be able to allege a cause of action for quiet title as to the irrevocable license. The Demurrer to the First Cause of Action is therefore **OVERRULED**.

Second Cause of Action. The Sturemans demur to the Second Cause of action on the basis that the Misers have failed to state a claim because not all elements of a private nuisance claim have been alleged. The elements of a private nuisance claim are set forth in CACI 2021. There are nine elements and the Misers have failed to allege all of them. However, the missing elements can be inferred from the allegations made by the Misers. For example, the Misers did not specifically allege that the Sturemans conduct was intentional and unreasonable or unintentional but negligent or reckless. However, the Misers alleged in ¶ 27 that the Sturemans “have blocked off partial use to Sandpit Road, permitting only a single lane of traffic.” The obvious inference is that the blocking was intentional. The Misers have sufficiently pleaded a private nuisance cause of action that provides adequate notice to the Sturemans. The Demurrer to the Second Cause of Action is **OVERRULED**.

The Demurrer is **OVERRULED**. The Sturemans provided a proposed Order that will be modified to reflect the Court’s ruling.

The Sturemans raised the issue of the Mandatory Settlement Conference date remaining after the trial date was vacated. The court intends on vacating the existing settlement conference. A new settlement conference will be set at the time the trial is set.

SYNCHRONY BANK VS. SILACCI

CASE NUMBER: 24CVG-01485

Tentative Ruling on Order to Show Cause Re: Sanctions: On July 30, 2026, the Court issued an Order to Show Cause Re: Sanctions to Plaintiff and Counsel Gurstel Law Firm PC for failure to timely obtain a default judgment as required by CRC 3.740(f). Proof of Service of Summons was filed on November 4, 2024. Plaintiff was required to obtain a default judgment within 360 days of the Complaint being filed on October 1, 2024. The Court notes that after the Order to Show Cause issued, Plaintiff filed a Motion for Entering Judgment Pursuant to Defendant’s Default Under the Settlement Agreement that is noticed for November 16, 2026. Hearing on the Order to Show Cause is continued to **Monday, November 16, 2026 at 8:30 a.m. in Department 63.** **No appearance is necessary on today’s calendar.**

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on July 1, 2026 to Plaintiff Amanda Kristeen Webb for her failure to appear at the prior hearings on May 11, 2026 and June 22, 2026. Plaintiff received notice of both hearings via mail. No written response has been filed. The Court notes monetary sanctions have already been imposed for Plaintiff’s failure to appear on May 11, 2026. Without sufficient excuse for failing to appear and because prior sanctions have been ineffective in ensuring Plaintiff’s attendance, the matter is dismissed without prejudice pursuant to Gov. Code § 68608(b). The clerk is directed to vacate any future dates and close the file.